Download all form :- www.UPSCPDF.com

Political Anthropology

Social Control, Law & Justice...

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

What is PA?

- Relatively a new discipline
- Tries to answer questions related to power, authority & legitimacy
- Scope of PA - constantly evolving, thereby including a number of theoretical paradigms

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Modern PA

- An overall approach which provides political anthropology with a periodic table of world political systems
- Explanation of differences and similarities between these political systems
- An analysis of power and authority relationships in social structure
- An understanding of political activity as a part of all social relations

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

- David Easton - ***political system is the authority relationship in the society itself and political activity takes place at the subsystem level and hence politics can be studied anywhere in the society - Family, Lineage, Religion or even economic organization***

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Summary of Scope

1. How many kinds of political systems have there been in history and how did they develop?
2. What effect does the differences among political systems have on political action?
3. What is the effect of political system upon its constituent individuals and their culture?
4. What is the effect of the non-industrial political system on the modernization process in contemporary world?

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

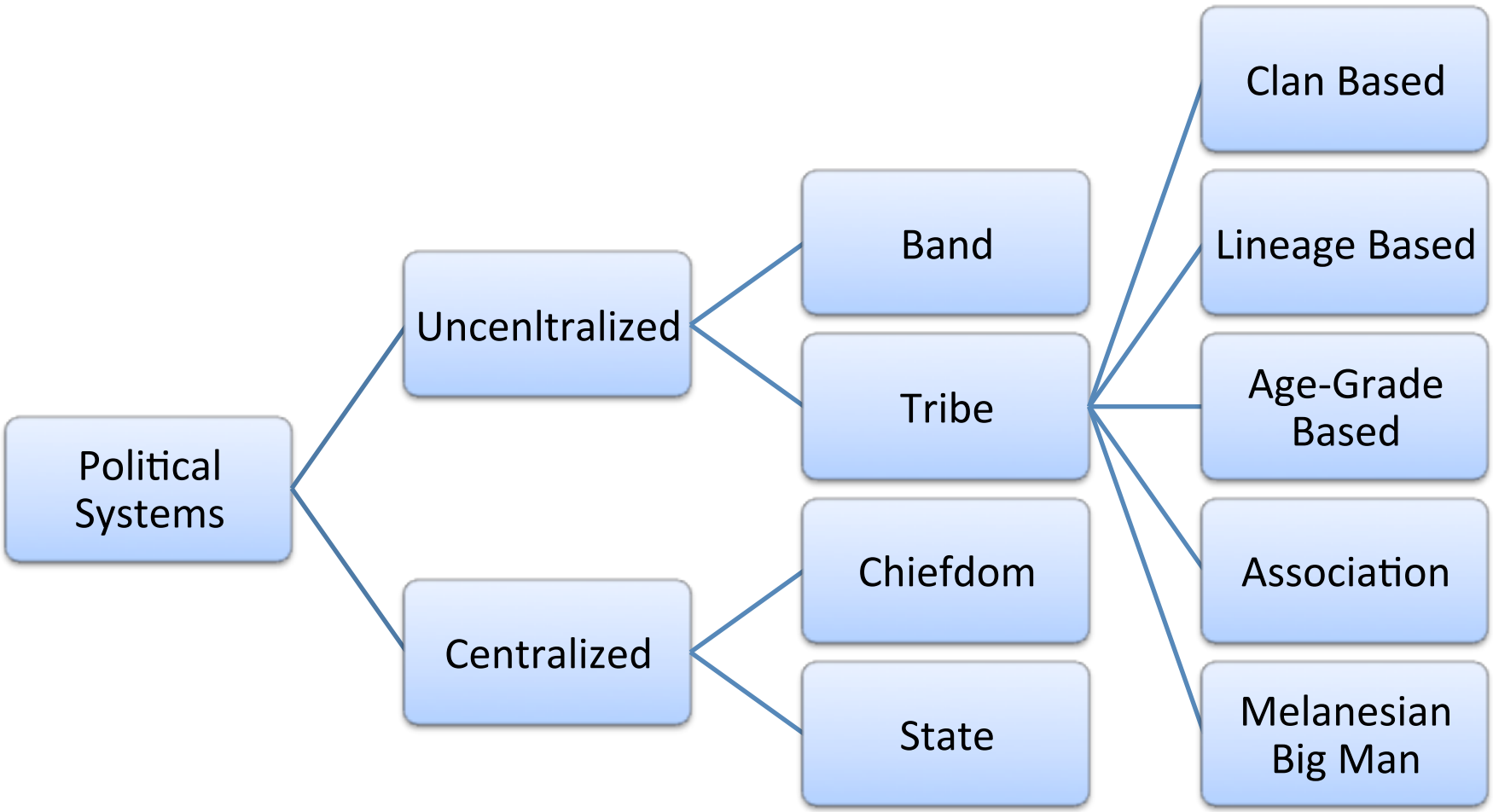
Political System

- Five components
  - Territorial / spatial aspect
  - Organizational aspect
  - Leadership aspect
  - Legal / Customary aspect
  - Inter-polity affairs

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Types of Political Systems



Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Power, Authority & Legitimacy

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Power

- A universal aspect of social interaction
- Shapes relationships among members of a group
- All social interactions involve participants trying to influence each other - differences in power
- **It is the determination of the behavior of others in accordance with one's own need – Kingsley Davis**
- **The probability that one actor within a social relationship is in a position to carry out his own will despite resistance – Max Weber**

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Power

- It is the capacity to take independent action in face of resistance
- Involves confrontation because of resistance
- It is not institutionalized
- Political activity involves the competition of individuals and groups for increase in power

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Power

- Power is SEGMENTARY – It can never be contained within an authority structure, since every one can attempt to gain more power than is legitimate under the constitutional arrangements

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Authority

- Authority is legitimate power
- It is **power based on consent**
- It is the **power to command obedience**
- It is institutionalized
- It involves the right to take certain actions - binding
- Leader of a military coup vs elected leader

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Power Vs Authority

1. Authority is always legitimate
2. Authority is based on consent while power is based on force
3. Authority is more democratic
4. Authority is the ability to get the proposals accepted while power is the ability to influence other's behavior

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Power & Authority

- Both power and authority are required to regulate public affairs
- **Without power, authority can accomplish little and without authority, power is not institutionalized and may loose its effectiveness in the long run**
- But political systems are able to exercise both power and authority without the use of any force! - HOW?

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Legitimacy

- There's a third ingredient - Legitimacy
- Is an expectation that those who make the decisions will meet certain obligations that those decisions made support the shared values of the members of the society
- Etymologically, it is "Lawful"
- It is the belief that the decision of the political systems or the policies posses the quality of rightness, propriety or moral goodness

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Legitimacy

- **Hence, it is not who makes the decisions but the content of these decisions that make the system work**
- It is the maintenance of the belief that existing political system is most suitable to the society, the masses must obey and accept its sanctity and consider it worthy of respect and reverence
- For those who do not comply with the decisions of leaders, force is required

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Types of Power

1. Positional and Non-Positional Power
2. Lundberg's Classification
    - Coercive Power - Dictator
    - Utilitarian Power - Manipulator
    - Identitive Power - Leader
3. Direct Power and Indirect Power

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Types of Power

4. On Basis of Influence
    - Force - Dictator
    - Domination - Parents
    - Manipulation - Propaganda

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Sources of Authority

1. Traditional Authority
2. Legal - Rational Authority
3. Charismatic Authority

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Types of Legitimacy

1. Ideological – Philosophy
2. Structural – Branches of the Government
3. Personal - Leader / Leadership

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Social Control

Meaning, Need, Means...

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Meaning

- Society is a harmonious organization of human relationships.
- Unless the individuals live up to the prescribed norms and subjugate their self seeking impulses to the welfare of the whole, no society would exist.
- Society, therefore, in order to exist and progress has to exercise certain control over its members - Social Control

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Meaning

- Mannheim - ***It is the sum of those methods by which a society tries to influence human behavior to maintain a given order.***
- **Levels of Social Control**
  - Group over Group
  - Group over Individual
  - Individual over Individual
- **It is an influence exercised by the society for promoting welfare of the group as a whole**

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Need for Social Control?

1. **To maintain old order**
2. **To establish social unity**
3. **To regulate individual behavior**
4. **To provide social sanction**
5. **To check cultural maladjustment**
   (esp. During social change)

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Means of Social Control

- Many ways to classify the means
  - Control by **Sanctions** (Rewards, Punishments) & Control by **Suggestion** (Advice)
  - Kimball Young - **Positive** (Rewards) & **Negative** (Punishments)

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Means of Social Control

- Luther Bernard
  - **Exploitative** (Punishment, Intimidation, Censorship, Repression) & **Constructive** (Education, Social Reform)
  - **Conscious** (Law, Education etc) & **Unconscious** (Customs, conventions, traditions)

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Means of Social Control

- F.E. Lumley - **Force & Symbols**
- Control through symbols - more effective
- Symbols - Two types
  - **Negative** - Gossip, Satire, Ridicule, Sarcasm, Threats, Propaganda, Humor
  - **Positive** - Rewards, Flattery, Persuasion, Education

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Informal Vs Formal Means

- **Informal Means**
  - Grow themselves in society without any special agency
  - Very important in primary groups
  - Belief, Social Suggestion, Ideology, Customs, Religion, Art, Literature, Public Opinion, etc
- **Formal Means**
  - Need specialized agencies
  - Law, Education, Coercion

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Social Control in Modern Society

- In modern societies social control is mostly exercised through **appeal to reason, education and social suggestion**
- Modern society does not favor the use of force through coercive methods
- **Will social control increase or decrease in the future?**

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Social Control in the Future

- Social control in the future **will increase enormously** because of
  - Heterogeneity
  - Social change
  - Collapse of the theory of Laissez-faire
- **Theory of Social Telesis -** L.F.Ward **- The more and more increasing control of government and expanding budgets, the more is the need for the social control**

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Custom & Law

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

What is Law?

- "Law can be defined as a social norm, whose violation beyond permissible limits, evokes a **formal procedural response** ... determining guilt and of **imposing sanctions** upon the wrong doer."
- Great controversy what constitutes a law
- In primitive societies, there are no laws and legal institutions, but formal procedural response and sanctions can be seen

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

What is a Law?

- Hobhouse and Wilson have postulated legal institutions as necessary to take the existence of law.
- Malinowski states that "the fundamental sanction of law is to curb certain natural propensities and control human instincts and to impose a compulsory behavior".
- Radcliffe-Brown states that some simple societies have no law although they have "customs which are supported by sanctions".

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Law & Custom

- ***"It is custom to meal at mid-day" and "it is a custom to kill a man convicted by witchcraft".***
- Different human motives are involved in maintaining the effectiveness of the two customs.
- The former is a matter of convenience while latter has strong anti-social sentiments
- Law only enters when selfish and strong anti-social and disruptive tendencies are likely to violate customary usages

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Law & Custom

- Every society has rules that control human behavior
- Some call it customs, while other call it law
- Radcliffe Brown - Nuer - Laws to settle disputes but only retaliation when other tribal is involved
- He says primitive societies have “customary laws”

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Differences between Custom & Law

1. Law is a make and custom is a growth
2. Law needs a special agency to create and enforce it
3. Law is specific, while customs are not
4. Law is more flexible than customs
5. Customs fade and disappear without formal abolition
6. Law is more idealistic than customs
7. Legal matters are social while customs are personal

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Interaction between Custom and Law

- Both custom and law complement and supplement each other
  - Unconscious customs may become conscious laws
  - A law divorced from customs will not be accepted by the people (Sarda Act) - Uniform Civil Code???
  - Customs are important sources of law
  - Law supplements customs when none exist
  - Laws can control customs which are anti-social (Art. 17)

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Modern Society - Custom or Law?

- Law is more effective in a modern society than customs because
  - Customs have no formal agencies and authoritative jurisdictions
  - Rapid Social Change - Customs cannot adapt faster
  - Heterogeneity of the Population - Secular Law

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Nature of Primitive Law & Justice

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Primitive Law & Justice

1. Primitive law is conceived largely in terms of Kinship rather than in terms of territory
2. Primitive Law coincides more closely with ethical notions
3. It is based on public opinion
4. It fails to discriminate public and private wrongs
5. Predominantly a criminal law
6. Everybody is its representative and policeman

Download all form :- www.UPSCPDF.com

Download all form :- www.UPSCPDF.com

Primitive Law & Justice

7. Breach of a norm amounts to sin
8. Intention and provocation in determining punishment is irrelevant
9. Kinship tie and collective responsibility towards law.
10. Evidence is through ordeal and oath.
11. Punishment is eye for eye and life for life
12. There are no grades of punishment in primitive law.

Download all form :- www.UPSCPDF.com